

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
JUSTIN DE LA CRUZ,

Plaintiff,

- against-

THE CITY OF NEW YORK, DANIEL WYNNE, JUSTIN
GARCIA, PEDRO LOPEZ, AALIYAH CARD, JOSEPH
AMODIO, LOUIS VANNUCCI, VINCENT PALAIA,
ROBERT KONNER, DAVID SAMMARCO, JUSTIN
CONDE, MAXIMILIAN LANZA, ROBERT AGRON,
ANTHONY MORALES, JOHN DOES 1-15, and
PATTERNIZR DOES 1-50,

Defendants.
----- X

Index No:

VERIFIED COMPLAINT

Plaintiff, JUSTIN DE LA CRUZ by his attorneys, LIAKAS LAW, P.C., as and for this
Verified Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This is a common law tort and civil rights action in which Plaintiff seeks relief for violation of his rights privileges and immunities guaranteed by the United States Constitution including the First, Fourth, Fifth, Eighth and Fourteenth Amendments, and federal law pursuant to 42 U.S.C. §1983, as well as pursuant to New York State and New York City laws which permit redress for same.

2. The complaint arises from events which began on or about February 2, 2023, when officers of the New York City Police Department [hereinafter as “NYPD”], acted in concert and/or otherwise jointly to unlawfully search and seize Plaintiff by assaulting, battering, and/or otherwise using excessive force against him.

3. On or about February 2, 2023 and continuing until on or about, February 10, 2023,

NYPD Police Officers, including, but not limited to DANIEL WYNNE, JUSTIN GARCIA, PEDRO LOPEZ, AALIYAH CARD, JOSEPH AMODIO, LOUIS VANNUCCI, VINCENT PALAIA, ROBERT KONNER, DAVID SAMMARCO, JUSTIN CONDE, MAXIMILIAN LANZA, ROBERT AGRON, ANTHONY MORALES, JOHN DOES 1-15, and JOHN DOES 1-15, [hereinafter collectively referred to as the “Individual Defendants”], acted in concert and/or otherwise jointly to violate Plaintiff’s rights, privileges, and immunities under federal, state, and city law by ensuring that he would be held in unconstitutional conditions of confinement while he was repeatedly arrested and held on various charges without probable cause, interrogated, and searched.

4. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

JURISDICTION AND VENUE

5. Within 90 days of the incidents alleged in this complaint, Plaintiff served upon Defendant, THE CITY OF NEW YORK, a Notice of Claim setting forth the name and post office address of Plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

6. More than 30 days have elapsed since Plaintiff’s Notice of Claim was served on Defendant.

7. Defendant did not timely mail Plaintiff’s counsel with a notice of a General Municipal Law §50(h) hearing.

8. Defendant failed to hold a scheduled General Municipal Law §50(h) hearing.

9. Defendant otherwise waived the right to hold a General Municipal Law §50(h) hearing of Plaintiff.

10. That all conditions precedent to the bringing of this action have been complied with.

11. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question began in the State of New York, Kings County, and THE CITY OF NEW YORK is subject to personal jurisdiction in the Supreme Court of the State of New York, Kings County.

PARTIES

12. Plaintiff, JUSTIN DE LA CRUZ (hereinafter “Plaintiff”), is a resident of the State of New York.

13. Plaintiff is a Hispanic male.

14. THE CITY OF NEW YORK (or “the CITY”) is a municipal corporation organized under the laws of the State of New York.

15. At all times relevant hereto, Defendant CITY, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel.

16. At all times here relevant, Defendant CITY was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the City and State of New York.

17. Defendant DANIEL WYNNE was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

18. Defendant JUSTIN GARCIA was at all relevant times, a police officer holding the rank of Captain, employed by the CITY OF NEW YORK through its NYPD.

19. Defendant PEDRO LOPEZ was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

20. Defendant AALIYAH CARD was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

21. Defendant JOSEPH AMODIO was at all relevant times, a police officer holding the rank of Sergeant, employed by the CITY OF NEW YORK through its NYPD.

22. Defendant LOUIS VANNUCCI was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

23. Defendant VINCENT PALAIA was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

24. Defendant DETECTIVE ROBERT KONNER was at all relevant times, a police officer holding the rank of Detective, employed by the CITY OF NEW YORK through its NYPD.

25. Defendant DETECTIVE DAVID SAMMARCO was at all relevant times, a police officer holding the rank of Detective, employed by the CITY OF NEW YORK through its NYPD.

26. Defendant DETECTIVE JUSTIN CONDE was at all relevant times, a police officer holding the rank of Detective, employed by the CITY OF NEW YORK through its NYPD.

27. Defendant MAXIMILIAN LANZA was at all relevant times, a police officer holding the rank of Detective, employed by the CITY OF NEW YORK through its NYPD.

28. Defendant DETECTIVE ROBERT AGRON was at all relevant times, a police officer holding the rank of Detective, employed by the CITY OF NEW YORK through its NYPD.

29. Defendant ANTHONY MORALES was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

30. Defendants JOHN DOES 1-15 were at all relevant times, police officers and/or NYPD officials, employed by the CITY OF NEW YORK through its NYPD, whose real names are not known.

31. At all relevant times mentioned herein, PATTERNIZR DOEs 1-50 were employed by the City of New York through the New York City Police Department.

32. At all relevant times mentioned herein, PATTERNIZR DOEs 1-50 were directly involved in the development, oversight, testing, use, continued use, analytics, expansion, rollout, and supervision of the use of the generative, machine learning, and/or algorithmic models, including, but not limited to Patternizr, [hereinafter, collectively referred to as “Patternizr, *et al.*”], which access the vast datasets that NYPD owns and/or has access to.

33. PATTERNIZR DOEs 1-50 knew or should have reasonably known that the use of Patternizr, *et al.*, would lead to the entry of false information indicating criminality or suspected criminality in NYPD’s databases.

34. PATTERNIZR DOEs 1-50 knew or should have reasonably known that the use of Patternizr, *et al.*, would lead to the false arrest, wrongful conviction, malicious prosecution, and use of excessive force against certain arrestees and/or detainees, including those falsely accused by the program as being suspects in gun crimes and homicides.

35. PATTERNIZR DOEs 1-50 knew or should have reasonably known Patternizr, *et al.*, were being used to or would be used to generate suspects for everything from a turnstile jump to a homicide, almost exclusively from those who had prior contact with NYPD in the dataset used to develop the programs, a population of mostly black and brown men from the five boroughs.

36. PATTERNIZR DOEs 1-50 failed and continue to fail to remove false, unreliable, and/or legally impermissible information, including sealed arrests, wrongful convictions, prosecutions declined for lack of probable cause, misidentifications, arrests resulting from police misconduct, and other matters from the data accessed by Patternizr, *et al.*

37. PATTERNIZR DOEs 1-50 failed and continue to fail to tell prosecutors, defense attorneys, judges, the public, and even the officers of the NYPD at large that the “system generated” suspects and leads created and/or determined by Patternizr, *et al.* are unreliable, fabricated, and false.

38. At all times mentioned herein, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

39. Defendant THE CITY OF NEW YORK is responsible for the tortious acts and omissions of its agents, servants, contractors, and employees, including, but not limited to the Individual Defendants pursuant to the doctrine of *respondeat superior*.

FACTUAL ALLEGATIONS

40. On February 2, 2023, at approximately 9 pm, Defendants, DANIEL WYNNE, JUSTIN GARCIA, PEDRO LOPEZ, and AALIYAH CARD, surrounded the entrance of the premises known as 305 80th Street, Brooklyn, NY 11209.

41. Minutes earlier, a 911 call was placed for a landlord tenant dispute at the address.

42. Landlord tenant disputes are not criminal matters.

43. The man who called 911 was the co-tenant of Plaintiff’s girlfriend who lived at the location.

44. The call was put over the radio by the dispatcher as a “dispute.”

45. A dispute is a low priority call.
46. Plaintiff was only identified on the 911 call as a Hispanic male named “Justin.”
47. No one on the radio identified Plaintiff as the subject of the dispute.
48. Defendants WYNNE and GARCIA were assigned to the call.
49. Upon information and belief, Defendants WYNNE and GARCIA accessed or were given information that was generated by NYPD’s Patternizr, *et al.*, that identified Plaintiff as the subject of the 911 call.
50. Throughout the rest of the evening, and over the course of the many days that followed, numerous NYPD officers including the Individual Defendants, accessed, retrieved, and/or were otherwise informed of the inaccurate and/or otherwise false information in NYPD’s database about Plaintiff, the false claim that he had a propensity to be armed and the false claim that he was suspected of having committed a murder.
51. The officers who were made privy to this false information often made a choice to treat Plaintiff differently because of it, including by violating his rights.
52. At all relevant times herein, Defendants who had access to the NYPD’s databases knew or should have known that the I-Cards issued for Plaintiff was not based on probable cause and were not reliable.
53. At all relevant times herein, Defendants who had access to the NYPD’s databases knew or should have known that the I-Cards issued for Plaintiff were not based on probable cause.
54. Upon information and belief, Defendants WYNNE and GARCIA accessed the NYPD databases in their vehicle computer and on their NYPD issued cell phones to search for information about Plaintiff.
55. Upon information and belief, Defendant WYNNE broadcast over the police radio

that Plaintiff was known to carry a firearm and had an I-Card.

56. Defendant WYNNE further used the information he found within the NYPD's database to falsely identify Plaintiff as a gun-toting perpetrator and gave his full name, date of birth, and physical description over the radio broadcast to multiple precincts.

57. A true and accurate copy, of the typed entry of the information WYNNE broadcast are included in the Figures 1 and 2 below:

Figure 1:

02/02/23 21:02:18	365093	ps1-d17	Event Comment (User) ⚠ AUTH OF 68D1 ADV ---PERP HAS SILVER BMW W NJ PLATE KNOWN TO BE ARMED W FIREARM---D2593
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Figure 2:

02/02/23 21:04:27	365093	ps1-d17	Event Comment (User) ⚠ AUTH OF 68C1 JUSTIN DELACRUZ ---MH ----5X6 ----- DB 3/8/94 WANTED FOR ROBBERY KNOWNN TO CARRY FIREARM--D2593
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58. Defendant WYNNE further used the false information he broadcast to escalate the situation by asking for backup.

59. Defendants LOPEZ and CARD were assigned to back up WYNNE and GARCIA at the location.

60. When the four officers were in front of the location, WYNNE proceeded to again recount the inaccurate, speculative, unsupported, and/or otherwise false information he had read in NYPD's computer about Plaintiff to officers GARCIA, LOPEZ, and CARD.

61. Defendant WYNNE announced to GARCIA, LOPEZ, and CARD that Plaintiff had a "suspect I-Card for murder" and was a "a perp perp" thereby falsely indicating that Plaintiff was a murderer.

62. At this point, none of the Defendants had seen Plaintiff and none had even confirmed that he was the person that WYNNE had identified or that any of the information

WYNNE had said was true.

63. When Plaintiff exited the building, WYNNE, GARCIA, LOPEZ, and CARD seemingly forgetting they were present to handle an alleged landlord tenant dispute, immediately and violently escalated the situation.

64. WYNNE immediately unholstered his NYPD taser without any justification and told Plaintiff to “put your hands on your fuckin head right now.”

65. WYNNE, GARCIA, LOPEZ, and CARD acting in concert all assaulted, battered, and used excessive force against Plaintiff.

66. The officers immediately reached into Plaintiff’s jacket and over his body and found that he had no weapons despite WYNNE’s false claims that Plaintiff was known to carry a firearm.

67. WYNNE, GARCIA, LOPEZ, and CARD physically restrained Plaintiff and began asking incriminating questions without *Mirandizing* him.

68. Defendant AMODIO arrived at the scene and the officers then briefly let Plaintiff go realizing that he was unarmed, his identity was unconfirmed, and that they did not have probable cause to arrest him.

69. Plaintiff and his girlfriend’s co-tenant were having a civil discussion about why the police were called within earshot of the officers which should have indicated to the officers, the nature of this conversation cast doubt upon the 911 caller’s story that had brought them to the scene.

70. Instead of continuing to listen to this information and instead of attempting to determine whether a crime had been committed, WYNNE intervened, and without warning, justification, or instruction from Defendant AMODIO who was the ranking officer at the scene,

grabbed Plaintiff.

71. Defendants GARCIA, LOPEZ, and CARD joined WYNNE and grabbed and violently physically restrained Plaintiff again and threw him up against a wall.

72. Plaintiff had a pre-existing injury to his left shoulder which he told the officers.

73. When Plaintiff said that he felt his arm was now broken due to the assault and battery WYNNE screamed “no it’s not” and continued brutally assaulting and battering Plaintiff in concert with GARCIA, LOPEZ, and CARD.

74. Defendant AMODIO at first observed, doing nothing to intervene.

75. Upon information and belief, Defendant AMODIO upon seeing the situation escalating unnecessary due to the officer’s inexperience, unprofessionalism, anger, and violence, approached the officers and said “hold on, woah, woah, woah” to instruct the officers on how to handcuff Plaintiff.

76. WYNNE and LOPEZ did not listen to AMODIO as they were too busy screaming that he was going to taze Plaintiff and repeatedly cursing at him while assaulting, battering, and using excessive force against him.

77. Defendant WYNNE repeatedly threatened to taze Plaintiff and instructed the others to taze Plaintiff because he was screaming in pain.

78. Although AMODIO heard WYNNE saying he was going to use unnecessary and potentially deadly force against Plaintiff, including by tazing him and encouraging the other officers to do so, he did not intervene except to position himself between Plaintiff and WYNNE.

79. Defendants then put Plaintiff in a prone position on his stomach and put their bodyweight onto his back by kneeling on Plaintiff’s back.

80. Plaintiff’s breathing was restricted, and he began to tell the officers that he could

not breathe.

81. Either WYNNE or GARCIA yelled “if you’re talking, you’re breathing” which is not only patently untrue, but a common police myth about prone restraint that has lead to the death of many arrestees.

82. The NYPD has been aware of the risks to arrestees who are restrained on their stomachs since at least 1995 when the United States Department of Justice (DOJ) issued a bulletin¹ to all police departments about the risk of sudden death from positional asphyxia.

83. Almost 30 years ago, the DOJ noted that applying pressure to an arrestee’s back while they are in a prone position prevents triggers difficulty breathing that can be fatal.

84. Almost 30 years ago, the DOJ noted that applying pressure to an arrestee’s back while they are in a prone position will trigger an involuntary and “natural reaction to oxygen deficiency” specifically that the arrestee will “struggle more violently.”

85. Upon information and belief, the NYPD knows that this myth persists among officers but does nothing to train them to ensure that officers who apply positional asphyxia restraints are retrained, disciplined, and removed from posts where they can cause harm to or murder an arrestee.

86. Defendants falsely charged Plaintiff with resisting arrest despite the fact that they were aware that his physical “resistance” is part of an involuntary physical reaction that they caused by using excessive force against him.

87. After the officers rear-handcuffed Plaintiff, they searched him again and upon finding no weapon, drugs, or any other unlawful items on his person, LOPEZ and WYNNE

¹A copy of the 1995 DOJ memo is available online at: <https://www.ojp.gov/pdffiles/posasph.pdf>

dragged Plaintiff by his arms to a police car further injuring him.

88. When Plaintiff was being taken to the police car, AMODIO asked GARCIA why Plaintiff was being arrested.

89. GARCIA responded that Plaintiff had “four suspect [I-Cards] and 1 PC to arrest” I-Card, referring to the information that GARCIA and WYNNE viewed in the NYPD’s system.

90. As further discussed below, the alleged Probable Cause I-Card was issued without probable cause and/or was maintained after the officers involved knew or should have known that any alleged probable cause had been vitiated.

91. Moreover, the alleged suspect I-Cards are not only irrelevant to whether someone should be arrested or detained, they contain patently inaccurate and false information.

92. Upon information and belief, the false information in the suspect I-Cards, including that Plaintiff was a murderer, fueled the willingness of the officers to violate Plaintiff’s rights including in the use of excessive force against him.

93. Defendant AMODIO did not inquire further and did not instruct, inform, or caution, GARCIA that it is unlawful to use a suspect I-Card as a basis to arrest, detain, or use force against anyone.

94. Additional officers arrived at the scene including Defendants Police Officers LOUIS VANNUCCI and VINCENT PALAIA.

95. Defendant VANNUCCI did not ask any questions about what had occurred or why Plaintiff was arrested.

96. Officer VANNUCCI put on gloves and began roughly searching Plaintiff and demanding his jewelry.

97. Officer VANNUCCI threatened Plaintiff and demanding Plaintiff’s jewelry and

threatening to break it if Plaintiff did not give it to him.

98. When Plaintiff was sat in the back of an NYPD vehicle sideways, with his legs still outside the door, he was obviously having trouble turning over and moving all the way into the vehicle.

99. Plaintiff complained about his handcuffs being too tight and one of his hands was turning purple but his complaints were ignored by the Individual Defendants and JOHN DOES 1-15.

100. Instead of assisting Plaintiff or waiting for Plaintiff to move himself in a way that did not cause further injury or pain, Officer VANNUCCI angrily went to the other rear door, opened it, got in the backseat, grabbed Plaintiff by his injured arm.

101. Plaintiff screamed “NO, NO, NO, NO, DON’T PULL IT!” referring to his arm which was already injured.

102. Defendant VANNUCCI disregarded his pain and yanked Plaintiff backwards by his injured arm forcefully while he was in handcuffs, further injuring and dislocating Plaintiff’s shoulder so badly that he later needed surgical intervention.

103. Officers CARD, LOPEZ, AMODEO, WYNNE, GARCIA, and PALAIA, among others, observed this but did nothing to intervene.

104. Neither VANNUCCI nor any of the officers that observed VANNUCCI use excessive force against a handcuffed arrestee reported the use of excessive force.

105. VANNUCCI continued behaving in a questionable and even manic manner at the scene.

106. VANNUCCI at one point remarked that when he heard the radio transmission made by WYNNE, he knew the arrest would “go south” and thought to himself “let me get my camera.”

107. While Defendant PALAIA, transported Plaintiff to the precinct, Plaintiff told him he needed to go to the hospital because of his injuries.

108. When Plaintiff got to the precinct and was in front of the Desk Sergeant, he told the Desk Sergeant, PALAIA, and the other officers present, that he was in severe pain, his left shoulder was dislocated, and he needed to go to the hospital.

109. Defendant VANNUCCI was in earshot of this exchange and knew that Plaintiff was seriously injured.

110. While still in front of the desk officer, Plaintiff observed Defendant VANNUCCI enter the precinct.

111. Plaintiff looked at VANNUCCI and in front of PALAIA, and the desk officer, said “you’re the one that pulled me, right?”

112. VANNUCCI lied and said “no.”

113. A screenshot of this exchange is included at Figure 3 below with VANNUCCI at the far left of the photo, and to his right, PALAIA who is shown in profile:

Figure 3:



114. PALAIA failed to tell anyone that VANNUCCI was in fact the officer who intentionally pulled Plaintiff's arm out of the socket while he was rear-cuffed.

115. No officer filled out a TRI report describing the use of excessive force by VANNUCCI.

116. The TRI reports for the incident do not mention Defendant VANNUCCI despite Plaintiff's explicit report that VANNUCCI used excessive force against him while he was handcuffed.

117. Moreover, the TRI reports falsely claim that Plaintiff's injuries were entirely pre-existing.

118. The TRI reports falsely misrepresent the seriousness of Plaintiff's injuries and do not report that his shoulder was dislocated.

119. It is clear from the body worn cameras at the scene that the officers were at least in part motivated to use excessive force against Plaintiff due to the nature and number of I-Cards issued for him in NYPD's computer system.

120. However, the I-Cards at issue, especially the one that falsely accused Plaintiff of murder, are not only false they have exposed an unsettling truth about the NYPD's Orwellian use of its data to police, surveil, track, harass, and monitor New Yorkers, including Plaintiff.

121. Upon information and belief, within at least the last 10 years, the NYPD has secretly begun using generative, machine learning, and/or algorithmic models, including, but not limited to Patternizr and those described above as "Patternizr, *et al.*" which access the vast datasets that NYPD owns and has access to.

122. Upon information and belief, the information accessed by Patternizr, *et al.*, includes confidential, unverified, biased, sealed, skewed, incorrect, false, statistically insignificant,

uncorrelated, and otherwise unreliable information.

123. Upon information and belief, the formulas that control, and/or guide Patternizr, *et al.*, are themselves, untested, unreliable, biased, skewed, incorrect, and otherwise unreliable.

124. Upon information and belief, the formulas that control, and/or guide Patternizr, *et al.*, result in the generation of false, incorrect, biased, and unreliable information about suspects, arrestees, crimes, victims, witnesses, and others.

125. Upon information and belief, the NYPD and its officers and employees have used Patternizr, *et al.*, without appropriate supervision, guidance, testing, peer-review, vetting, legal review, or control.

126. The NYPD's development, use, and promulgation of Patternizr, *et al.*, has real-world consequences for mostly black and brown New Yorkers, including Plaintiff.

127. The Defendants knew or should have known that the predictive or generated suspect leads in the NYPD's databases were unreliable and/or false.

128. Here, the Individual Defendants repeatedly referenced the false I-Cards issued for Plaintiff as a reason to arrest him.

129. For example, unbeknownst to Plaintiff at the time, on March 25, 2021, Defendant ROBERT KONNER entered I-Card I2021012777 into the NYPD computer system.

130. I-Card I2021012777 falsely identified Plaintiff as a suspect in an alleged incident of Reckless Endangerment in the First Degree related to complaint number 2019-047-11563.

131. There is no indication as to how Defendant KONNER determined that Plaintiff was a suspect in this complaint report.

132. Upon information and belief, Defendant KONNER accepted a system generated lead identifying Plaintiff as a suspect based on a the biased, inaccurate, false, and otherwise

untrustworthy Patternizr, *et al.*, programs.

133. Upon information and belief, Defendant KONNER identified Plaintiff as a suspect for an ulterior motive, including but not limited to, tracking Plaintiff.

134. Upon information and belief, Defendant KONNER identified Plaintiff as a suspect for an ulterior motive, including but not limited to, skewing the Patternizr, *et al.*, programs to use the entry to further skew the auto generated leads to suggest that Plaintiff is a suspect in other shootings.

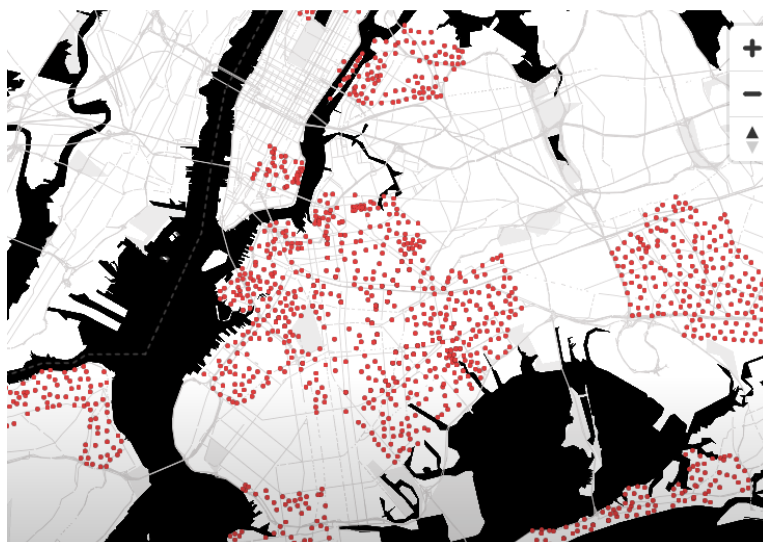
135. Incredibly, complaint number 2019-047-11563, the incident for which KONNER listed Plaintiff a suspect in a serious felony involving the discharge of a firearm was not a complaint originating from a person, but rather, it was the result of a different NYPD computer program.

136. Complaint number 2019-047-11563 was generated by the NYPD's use of ShotSpotter which allegedly detects the sound of gunfire occurring in certain areas of New York City.

137. According to the reports of a recent data leak, ShotSpotter microphones are mostly placed in black and brown neighborhoods in New York City. A depiction of the ShotSpotter locations published online is included in Figure 4, below.²

Figure 4:

² Available electronically at: <https://www.wired.com/story/shotspotter-secret-sensor-locations-leak/>



138. ShotSpotter, is not perfect, and even a firework or a similar loud noise, can produce a false alert.

139. The Complaint states that on November 16, 2019, at 2 minutes after midnight, the ShotSpotter program identified a possible gunshot in the area of 3701 White Plains Road in the 47th Precinct.

140. A fair and accurate screenshot of the narrative for the subject complaint is included herein as Figure 5, below.

Figure 5:

NARRATIVE: AT TPO PD RECEIVED A SHOT SPOTTER ACTIVATION AT ABOVE LOCATION, CANVASS WAS CONDUCTED WITH NEGATIVE RESULTS, NO PROPERTY DAMAGE, NO SHELL CASINGS RECOVERED, NO 911 CALLS WERE MADE. WITNESSES STATED THEY HEARD POSSIBLE GUN SHOTS BUT DID NOT SEE ANYTHING. CAMERAS AVAILABLE AT 3701 WHITE PLAINS ROAD.			
No NYC TRANSIT Data for Complaint # 2019-047-011563			
Total Victims: 1	Total Witnesses: 0	Total Reporters: 0	Total Wanted: 0
VICTIM: # 1 of 1		Name: ,	Complaint#: 2019-047-011563
Nick/AKA/Maiden: UMOS: NO Sex/Type: PSNY Race: UNKNOWN Age: 0		Gang/Crew Affiliation: Name: Identifiers:	

141. The narrative says in sum and substance, that the NYPD received an alert that ShotSpotter detected a possible gunshot. The location was canvassed by police officers who found

146. When the 47th Precinct was contacted about I-Card I2021012777, on or about February 8, 2023, Defendant DAVID SAMMARCO told a fellow officer running warrant checks that I2021012777 and another I-Card issued for Plaintiff, specifically, I2022036171, were “for tracking purposes only.”

147. A true and accurate screenshot of the notes for some of the I-Cards is included in Figure 7 below.

Figure 7:

suspect icards:

#I2021009002 for pl 125.25 [murder] 102pct uf61 #202110201007 det Villanueva
 #I2021012777 for pl 120.25 [reckless endangerment] 47pct uf61 #201904711583
 #I2022036171 for pl 120.14 [menacing] 47pct uf61 #202204707176 det hogue

arrest made on #I2022067075 for pl 140.20 [burglary] 47pct uf61 #202204714447 det novak

***UPDATE**ICARD #I2019005311/61 #2019-075-01105/SUSP...NO ANSWER PLEASE FOLLOW UP IN THE AM - YB @0829HRS

ICARD #I2021009003/61 #2021-102-01007/SUSP...AS PER DET COSPITO NOT NEEDED - YB @0827HRS

ICARD #I2021009002/61 #2021-102-01007/SUSP...AS PER DET COSPITO NOT NEEDED - YB @0827HRS

ICARD #I2021012777/61 #2019-047-11563/SUSP...AWAITING CALL BACK - YB @0824HRS

ICARD #I2022036171/61 #2022-047-07176/SUSP...AWAITING CALL BACK - YB @0824HRS

ICARD #I2015011459/61 #2015-090-01908/WITNESS... NOT NEEDED AT THIS TIME - YB @0831HRS

UPDATEDICARD #I2021012777/61 #2019-047-11563/SUSP...AS PER DET SAMMARCO FOR TRACKING PURPOSES ONLY - YB @1003HRS

ICARD #I2022036171/61 #2022-047-07176/SUSP...AS PER DET SAMMARCO FOR TRACKING PURPOSES ONLY - YB @1003HRS

148. It is unknown how many other New Yorkers are falsely listed as suspects of non-crimes in the NYPD's databases.

149. It is unknown how many other New Yorkers are falsely listed as suspects of non-crimes in the NYPD's databases for purposes of the NYPD falsely tracking and/or harassing them.

150. A similar result occurred with respect to the suspect I-Card for murder that the officers arresting Plaintiff repeatedly mentioned.

151. A review of the I-Card for murder shows the murder at issue was an unwitnessed

drive by shooting that occurred when Plaintiff was incarcerated.

152. Once again, the I-Card appears to be the result of a false system generated lead, and/or the improper use of I-Cards as tracking devices.

153. After Plaintiff was taken to the hospital for the first time, he was returned to the precinct where he was held for an extended amount of time so that officers could interrogate him about two open I-Cards.

154. During this time, Plaintiff was in extraordinary pain and discomfort due to his serious injuries and his lack of regular access to the necessary medication he has to take every day.

155. Instead of ensuring that Plaintiff was adequately cared for, Defendants used the opportunity to interrogate Plaintiff repeatedly.

156. Upon information and belief, at all relevant times herein, Plaintiff was represented by a criminal attorney.

157. At all relevant times herein, Defendants interrogated and/or otherwise questioned Plaintiff without his attorney present in violation of Plaintiff's rights.

158. At all relevant times herein, Defendants interrogated and/or otherwise questioned Plaintiff without permitting him to contact his attorney, in violation of Plaintiff's rights.

159. Plaintiff was questioned about two I-Cards for which he was later arrested despite the fact that the officers already knew they did not have probable cause to arrest him.

160. The Bronx and Manhattan District Attorneys each refused to prosecute Plaintiff for the charges related to the I-Cards as the charges lacked probable cause.

161. Plaintiff was questioned at the Precinct by Defendants JUSTIN CONDE, MAXIMILIAN LANZA, ROBERT AGRON, and ANTHONY MORALES.

162. Defendants refused to withdraw the I-Cards despite knowing that the cases were

not supported by probable cause.

163. Defendants, in preparation to falsely charge Plaintiff with yet another crime, used the opportunity to obtain a sample of Plaintiff's DNA during an interrogation after offering him a cigarette.

164. Defendants also attempted to coerce and intimidate Plaintiff into admitting to crimes that he did not commit and/or implicate others in those crimes by repeatedly and aggressively questioning Plaintiff.

165. Upon information and belief, Defendants, believed that Plaintiff was in contact with known criminals and were detaining Plaintiff in an attempt to gather information from Plaintiff and/or snitch on those criminals, violating Plaintiff's First, Fourth, Eighth, and Fourteenth Amendment rights.

166. On or about February 4, 2024, Plaintiff was ordered to be released on his own recognizance.

167. Instead of releasing Plaintiff as ordered, Defendants acted in consort to repeatedly rearrest Plaintiff unlawfully for crimes despite their lack of probable cause.

168. Defendants did this knowing Plaintiff was in extreme pain, and without access to his necessary medication, and in a further attempt to coerce Plaintiff to admit to committing crimes he did not commit and/or to implicate others in those crimes.

169. Defendants continued this process moving Plaintiff from borough to borough and to Rikers Island until February 10, 2023.

170. Defendants knew that being detained for such a long period of time would cause Plaintiff severe suffering.

171. Defendants knew or should have known that that cuffing a person such as the

Plaintiff with a shoulder injury and injury to his wrists for extended periods of time would cause that person severe bodily injuries and cause extreme pain and suffering.

172. Defendants' actions exacerbated Plaintiff's injuries even further and caused Plaintiff extensive pain and suffering.

173. Defendants also knew that Plaintiff was prescribed medication that he needed to take daily. Defendants knew or should have known that if Plaintiff was not able to receive his medication that he would begin to have withdrawal symptoms and that withdrawal symptoms are uncomfortable, painful, embarrassing and are potentially life threatening.

174. Despite causing Plaintiff the above suffering and being in custody for more than a week, Defendants only took Plaintiff to the hospital a few times.

175. When Plaintiff was taken to the hospital, Defendants interfered with his treatment and repeatedly told the medical personnel that was attempting to treat Plaintiff, that Plaintiff was not in pain, not suffering from any symptoms and/or was overexaggerating his complaints.

176. Defendants JOHN DOES 1-15 are other police officers, sergeants and/or detectives who conspired with the named Defendants to violate Plaintiff's rights and/or witnessed Defendants violate Plaintiff's rights and did not report it or otherwise intervene.

FACTS RELEVANT TO PLAINTIFF'S *MONELL* CLAIM
AND RELATED STATE LAW CLAIMS

177. Upon information and belief, the CITY knew or reasonably should have known that Defendants were unfit to be uniformed law enforcement officers prior to the date of incident.

178. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents of misconduct.

179. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents of perjury and/or the submission of false and/or

inaccurate misstatements in official records.

180. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents that were proof or indicia of corruption.

181. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents that were proof or indicia of violent propensities to injure, abuse, and/or commit civil rights violations.

182. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior behavior that was proof or indicia of an inability to control their anger and/or inappropriate behavior.

183. Upon information and belief, the CITY knew or reasonably should have known that Defendants were not capable of understanding and/or had propensities to disregard or violate their responsibilities under the Constitution.

184. The CITY failed to investigate the prior incidents, complaints, and/or information it had regarding Defendants.

185. The CITY failed to conduct proper background investigations of Defendants at the time they were hired.

186. The CITY failed to conduct proper investigations of Defendants after receiving serious complaints about Defendants behaviors, propensities, and/or conduct.

187. The CITY failed to intervene to reprimand, retrain, punish, and terminate Defendants.

188. These failures are not isolated incidents, but rather, the natural and probable consequence of the CITY's longstanding failure to investigate, monitor, punish, and otherwise intervene in the misconduct, corruption, and criminal acts committed by members of the NYPD,

including Defendants.

189. These failures are also the natural and probable consequence of the CITY's longstanding failure to encourage, assist, and train its officers to report and intervene in misconduct they observe and/or failure to punish officers for failing to intervene as required by law, and department guidelines.

190. Despite the prior findings by the Mollen Commission which exposed mismanagement, coverup, and corruption in the punishment precinct level disciplinary process, the CITY allowed the majority of the incidents involving Defendants to be "resolved" at the precinct or borough level instead of to be investigated by the Internal Affairs Bureau.

191. The CITY, through its NYPD, has reduced the effectiveness of its internal discipline through the use of the Threat, Resistance, Injury (TRI) report process which allows officers, with the assistance of a supervisor, to ensure that IAB is not called to investigate incidents.

192. The CITY's failures stretch back at least as far as the Mollen Commission which revealed rampant abuse, corruption, and criminal activity by NYPD officers and a persistent failure and/or refusal to investigate these acts and omissions in order prevent oversight and/or a broadening of investigations into the misconduct endemic to of the NYPD and/or to prevent embarrassment of the department via public awareness and news reporting of incidents of misconduct which often results in the termination of both high-ranking and rank-and-file members.

I. I-Card Abuse

193. Upon information and belief, NYPD's "system generated" I-Cards are created by NYPD's database of information based on an unknown algorithm.

194. Upon information and belief, NYPD's "system generated" I-Cards are frequently incorrect.

195. Upon information and belief, NYPD's "system generated" I-Cards are based on

incorrect information.

196. Upon information and belief, NYPD's "system generated" I-Cards are based on an algorithm more frequently identifies black and Hispanic males as suspects.

197. Upon information and belief, NYPD's "system generated" I-Cards are frequently based on information that is false.

198. NYPD has promulgated a three-page policy "Patrol Guide 208-23" regarding the issuance and use of its I-Cards.

199. NYPD I-Cards are generally circulated within the NYPD in three variations, "Witness" I-Cards, "Suspect Only – No Probable Cause to Arrest" I-Cards and "Perpetrator - Probable Cause To Arrest" ("Probable Cause") I-Cards.

200. "Probable Cause I-Cards are the only I-Card upon which an officer is permitted to detain or arrest the subject of the I-Card.

201. "Suspect Only" I-Cards and "Witness" I-Cards do not permit an officer to arrest or even to detain the person identified therein.

202. As the "suspect only" I-Cards and "witness" I-Cards do not permit officers, to treat citizens any differently than they would any other citizen, there is no reason for NYPD to permit officers to view or access this information unless the individual is already in police custody.

203. NYPD knows or reasonably should know that officers who can view these I-Cards will impermissibly stop, harass, detain, and arrest those with "suspect only" I-Cards and that they will likely fabricate a pre-textual reason for doing so, including a reason that permits them to falsely arrest the individual.

204. Upon information and belief, many "suspect only" I-Cards are system generated and/or were system generated and then were subsequently accepted by officers and/or employees

without sufficient inquiry or research.

205. Upon information and belief, many “suspect only” I-Cards are used to unlawfully “track” certain individuals, including Plaintiff.

206. Suspect only I-Cards can be used to track individuals because the NYPD and the officers who issue them know that other officers will not follow the law and will stop, detain, and find a pretextual reason to arrest an individual with suspect only I-Cards.

207. As such, every time a person with a suspect I-Card comes into contact with police, they will be more likely to be falsely arrested and/or unfairly detained as a result of the I-Card.

208. The CITY knew or should have known that officers are often confused and/or intentionally disregard the differences between the I-Cards.

209. A “Probable Cause” I-Card should only be submitted by an officer who reasonably believes that they have probable cause to arrest a suspect for a felony.

210. A “Probable Cause” I-Card should be withdrawn as soon as the officer determines that probable cause has vitiated.

211. Upon information and belief, the NYPD has failed to adopt or promulgate a policy regarding the unlawful practice of officers failing to remove I-Cards that are no longer supported by probable cause.

212. Upon information and belief, the NYPD has failed to adopt or promulgate a policy regarding the unlawful practice of officers accepting system generated leads without investigating them.

213. Upon information and belief, the NYPD has failed to adopt or promulgate a policy regarding the unlawful practice of officers using I-Cards to track, and/or harass citizens

214. Upon information and belief, worse still, NYPD uses “system generated” I-Cards

that are not generated by a detective, but are generated by the systems, algorithms, databases, and other programs identified herein as Patternzr, *et al.*

215. Upon information and belief, NYPD's "system generated" I-Cards are frequently incorrect.

216. Upon information and belief, NYPD's "system generated" I-Cards are based on incorrect information.

217. Upon information and belief, NYPD's "system generated" I-Cards are frequently based on information that is false.

218. Upon information and belief, NYPD's "system generated" I-Cards are based on an algorithm more frequently identifies black and Hispanic males as suspects.

219. Upon information and belief, NYPD's databases and/or computer programs compile and recommend "system generated" suspects to detectives.

220. Detectives, then sometimes accept the "system generated" suspect by creating a "suspect only" I-Card.

221. All I-Cards including those which are system generated, are tracked in NYPD's "Recidivist Information" databases and forms, even if they were never reviewed or verified by the officer.

222. The NYPD relies on "recidivist information" to generate suspects of all types of crimes, from violations to homicides.

223. The NYPD includes its "recidivist information" records on many types of documents generated from its computer system that are used to evaluate both whether a person is a suspect for a given crime and/or whether the person is dangerous.

224. Recidivist Tracking information is often accepted as truth by officers who are

unaware that it is unreliable or those who do not care to evaluate such information.

225. The NYPD does not verify that the information within the “recidivist information” data is accurate.

226. The NYPD does not verify that the information within the “recidivist information” data is not false.

227. The NYPD does not verify that the information within its “recidivist information” data is based on probable cause.

228. The NYPD does not ensure that officers do not use inaccurate information to inform their belief about whether a suspect may have committed a crime.

II. For Nearly 30 Years, the CITY has Prevented Significant Independent Inquiry into the NYPD

229. On July 7, 1994, chaired by the Hon. Milton Mollen, the eponymous Mollen Commission, released its public final report titled “The City of New York Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department” [hereinafter “Mollen Comm’n Final Report” or “Final Report”].

230. The Mollen Commission’s findings, as discussed more thoroughly below, were explosive, and evidenced a systematic, and sometimes intentional failure, at every level of the NYPD to investigate corruption, abuse, and misconduct by its officers including sometimes high-ranking members of the NYPD.

231. The corruption, abuse, and misconduct exposed by the Mollen Commission included, but was not limited to: police officers robbing drug dealers, selling drugs and guns that they had stolen, randomly assaulting and battering citizens for fun, raping sex workers, running protection for gang members and drug dealers, engaging in bribery scams including with tow truck operators and those they issued summonses to, drinking and doing drugs while on and off duty,

burglarizing/robbing/stealing guns, drugs, money, and valuables from citizens, tampering with evidence including carrying “drop guns” and other evidence to plant on arrestees and/or those they may shoot, frequently committing perjury and/or submitting false information to prosecutors to secure convictions and/or cover up their misdeeds, as well as a general wide-spread refusal to report colleagues who commit misconduct and crimes.³

232. Prior to the Mollen Commission, the Knapp Commission (1970-1973), the Helfand Investigation (1949-1950), the Seabury Investigation (1932), the Curran Committee (1912), and the Lexow Commission (1895) each exposed patterns of corruption and abuse at the NYPD.

233. Nearly every twenty years, the then existing patterns and practices of widespread corruption and abuse at the NYPD were exposed by these independent commissions.

234. It has been almost 30 years since the Mollen Commission issued its final report.

235. Following the Mollen Commission’s bombshell hearings and reports, the CITY formed the Commission to Combat Police Corruption (CCPC) which is allegedly an independent panel formed to monitor and evaluate the anti-corruption efforts of the NYPD which were found to be largely ineffective, at times intentionally so, by the Mollen Commission.

236. The CCPC has no authority to investigate instances of police corruption or misconduct, it merely issues annual reports on whether, in its determination, the NYPD is effectively monitoring investigating and corruption, based on the information that NYPD deigns to offer it.

237. All members of the CCPC are appointed by the Mayor of the CITY and serve at his pleasure.

³ Mollen Comm’n Final Report, (July 7, 1994) available online at: www.nyc.gov/assets/doi/images/content/timeline/MollenCommissionNYPD.pdf (last accessed Nov. 26, 2023).

238. The CCPC cannot even issue a subpoena unless the Department of Investigation (DOI), a mayoral agency of the CITY, and thus, part of the CITY itself, allows it to.

239. Upon information and belief, the CCPC was not created for its stated reasons alone, but also and/or solely to offer the appearance of sufficient independent oversight in order to avoid the appointment of another commission like the Mollen Commission which would have the power to issue subpoenas, conduct independent investigations, and to make findings supported by evidence.

240. As discussed by the Mollen Commission at length, the NYPD has a pattern and practice of endangering the safety of the public by allowing officers who commit misconduct and/or are otherwise abusive and/or corrupt, to avoid detection, prosecution, discipline, and termination, to spare the department potential embarrassment and/or to prevent civil and/or criminal consequences for those who commit, support, and/or turn a blind eye to rampant misconduct, corruption, and abuse at NYPD.

241. An independent commission, with at least the powers and independence granted to the Mollen Commission is both long overdue and desperately needed.

242. Part of the relief sought by Plaintiff is injunctive relief ordering an independent and impartial review of the New York City Police Department.

243. The Mollen Commission's Final Report is incorporated hereto by reference.⁴

244. The CITY received the findings, testimony, evidence, and facts relied upon and reported by the Mollen Commission and has had the findings in its possession for nearly thirty

⁴ Portions of the Final Report are available at the link at FN1. Plaintiff is limited by the facts presently known and available to Plaintiff and will seek discovery of the full Mollen Commission files as in the CITY's possession during discovery.

years.

III. Of “Rats” and Policemen:

245. As succinctly stated by the Mollen Commission, “the problem of police corruption extends far beyond the corrupt cop. It is a multi-faceted problem that has flourished in parts of our City not only because of opportunity and greed, but because of **a police culture that exalts loyalty over integrity; because of the silence of honest officers who fear the consequences of “ratting” on another cop no matter how grave the crime...**”⁵

246. Consistent with the issues reported by the Mollen Commission thirty years ago, officers today do not report misconduct, abuse, and criminal acts of their fellow officers for fear of being “labeled a “rat” [and because they] lack[] confidence in the Department’s commitment to uncover corruption and maintain confidentiality.”

247. The Mollen Commission also noted that officers had told them “that their careers would be ruined” if they reported a fellow officer’s misconduct and that “[t]he evidence shows that this belief was not unfounded.”

248. As in the days of the Mollen Commission, the NYPD continues to ensure it is difficult and dangerous for officers to report misconduct.

249. Despite the NYPD’s actual knowledge for more than thirty years that members of its force were in large numbers failing, to report corruption, fraud, abuse, misconduct and criminal acts by their fellow officers, and thus, themselves committing unlawful acts, civil rights violations, and misconduct, the CITY has done little, if anything, to make officers more likely to intervene in the unlawful acts of their colleagues or even to report same.

250. Here, the individual Defendants as well as the numerous other NYPD officers

⁵ Mollen Comm’n Final Report at FN1, page 4 (emphasis added).

witnessed the force used against Plaintiff, his denial of medical treatment, his unlawful interrogation, and continuous arrest, and who knew the charges and I-Cards against him were false but did nothing, and said nothing, thereby ensuring that the blatant Constitutional violations committed in their presence continued.

251. Patrol Guide 221-10 contains the following three sentences which have remained virtually unchanged for decades: “Failure to intervene in the use of excessive force or report excessive force or failure to request or ensure timely medical treatment for an individual is serious misconduct that may result in criminal and civil liability and will result in department discipline up to and including dismissal. If a member of service becomes aware of the use of excessive force or failure to request or ensure timely medical treatment for an individual, the member must report such misconduct to the Internal Affairs Bureau Command Center. This report can be made anonymously.”⁶

252. The policy does not provide any information on how to contact IAB or what protections will be given to officers who cooperate with “the rat squad” as IAB is commonly referred to by officers.

253. The policy does not discuss the protections for whistleblowers or provide any information that would allow an officer to feel comfortable reporting a use of force that was unconstitutional given that they too will be deemed a “rat” for doing so.

254. The policy does not even include the number that officers can call to make such a report.

255. The NYPD does not even provide any elaboration on this three-sentence policy, buried among thousands of pages of other policies.

256. Despite the three-sentence policy promulgated by the CITY, the actual custom and

⁶ NYPD Patrol Guide 221-10.

practice of the NYPD is that when an NYPD officer reports on another officer, they are a “rat” forever and face perpetual ostracization.

257. The NYPD even has a custom and practice of identifying and thereby deriding an officer who seeks to follow the rules, including the Patrol Guide, and the laws of the State of New York, as a “shakebox” or “shakey” indicating they are not “good cops” or “on the level” cops who and cannot be trusted with preferential assignments or even invited to after work events.

258. Being labeled “a rat” is worse still and is often the death knell of any NYPD career.

259. Reporting fellow officers in an organization as insular as the NYPD, is regarded as an act of social deviance, that feels like a criminal act and is often treated like one.

260. As former Detective Jeffrey McAvoy recalled to the New York Times, when he called IAB in 2008 to report a lieutenant of stealing thousands of dollars from a drug dealer, he was physically ill at the idea of following this policy: “I went to the bathroom about a dozen times and threw up, actually physically threw up, before I made the call.”⁷

261. Other officers labeled “rats” have been bullied, harassed, and ostracized by those they once considered not just coworkers, but family.

262. Some officers labeled “rats” or who have testified about the crimes of other officers have been pushed out of the department, and some have attempted suicide.

263. In 2011, a NYPD officer and union delegate allegedly touched the third rail of the one train in a suicide attempt after being subpoenaed to testify in the Bronx ticket fixing inquiry.

264. Being labeled a “rat” can also get an officer killed.

265. As former NYPD police officer Bernard Cawley put it when he testified before the

⁷ Goldstein, J. N.Y. Times, (Jun. 24, 2012), “Officers, Exhorted to Report Corruption, Still Fear Retaliation” available at: <https://www.nytimes.com/2012/06/25/nyregion/new-york-police-officers-face-retaliation-for-reporting-corruption.html> (last accessed Feb. 26, 2024).

Mollen Commission: "...it was the Blue Wall of Silence. Cops don't tell on cops. And if they did tell on them, **just say if a cop decided to tell on me, his career's ruined. He's going to be labeled as a rat....**And chances are **if it comes down to it, they're going to let him get hurt.**"⁸

266. Moreover, despite providing training and instruction for literally every possible piece of paperwork that may be filled out and endless videos and tactical training scenarios for situations that most officers will never encounter, the NYPD appears to provide zero training or instruction on how to effectively intervene in excessive force, false arrest, and/or other misconduct and civil rights violations, or how to safely report their fellow officers.

267. The NYPD has failed to develop specific and realistic instruction or regular training on how to navigate detecting, intervening in, and reporting misconduct, including the use of excessive force.

268. The NYPD has also failed to investigate and discipline instances where officers are present for or know about misconduct, including excessive force, but fail to intervene and/or report it.

269. This sends a clear message that if an officer witnesses their fellow officer commit acts of corruption, misconduct, or even crimes – they should keep their mouth shut.

270. In fact, the Mollen Commission heard testimony that officers had been explicitly told at roll call "if you get caught, keep your mouth shut."⁹

271. THE CITY OF NEW YORK knows to a moral certainty that failing to provide training and policies on how to intervene in and report misconduct makes it unlikely that anyone will report misconduct or intervene to stop it from occurring.

⁸ Testimony of Bernard Cawley before the Mollen Commission available at: https://youtu.be/L_1hxKgFsWw?si=JGtFz8lw2wmESKK1 (last accessed Nov. 26, 2023).

⁹ Mollen Comm'n Final Report at *3.

272. THE CITY OF NEW YORK knows to a moral certainty that allowing these customs and practices to continue allows serious misconduct to go unreported and encourages officers, including those who witness misconduct, to present false evidence and/or false information in official reports and/or to the prosecution in order to assist in covering up misconduct.

273. THE CITY OF NEW YORK knows to a moral certainty that its acts and omissions will allow officers who commit significant misconduct, including civil rights violations, to remain on the job where they can harm people – including people like Plaintiff.

274. THE CITY OF NEW YORK knows to a moral certainty that failing to enact policies to make it easier and safer for officers to report misconduct will mean that most constitutional violations, including egregious violations involving deaths and horrific acts, will go unreported or will be actively covered up.

275. THE CITY OF NEW YORK has done nothing to revise its policies or training to prevent these inevitable consequences of its failures from harming citizens like Plaintiff.

IV. ‘TRI’ Not to Call IAB:

276. Following the July 17, 2014, homicide of Eric Garner, and the November 20, 2014, homicide of Akai Gurley, both at the hands of NYPD officers, the NYPD made significant changes to its investigations of excessive force.

277. Those changes have, upon information and belief, prevented the independent and uncorrupted investigation into acts of excessive force and assisted officers in covering up incidents of excessive force, including by preventing IAB from investigating serious incidents like the one at issue here.

278. Prior to 2015, when a NYPD officer used excessive force that caused death or significant injury, the incident resulted in a “callout” to IAB who would dispatch officers to interview

injured arrestees or investigate deaths independent of the rest of the NYPD.

279. In 2015, the NYPD developed the Force Investigations Division (FID) which was allegedly created to investigate uses of force.

280. The policy changes mandated that where NYPD officers discharged their firearms, and/or where an arrestee died, or was likely to die following an interaction with NYPD, the FID would have sole jurisdiction to investigate whether the force used was justified.

281. The policy change essentially divested the authority of IAB to investigate any deaths at the hands of NYPD.

282. FID is not independent in the manner that IAB was intended to be.

283. Upon information and belief, the true purpose of FID was to usurp the jurisdiction of IAB in serious force cases, including all death cases so that the investigation can be guided to find that the officers were justified in using force, including deadly force.

284. IAB investigations of custodial deaths had led to multiple prosecutions of NYPD officers prior to the development of FID.

285. Upon information and belief, to date, FID's investigations have not led to any prosecutions of NYPD officers.

286. Upon information and belief, FID spends most of its extensive resources gathering evidence to justify uses of excessive force, discredit witnesses who do not support the NYPD's narrative, delaying questioning of the subject officers, and controlling evidence (including in allowing significant evidence to be ignored) collection from crime scenes of serious including fatal, uses of police force.

287. Upon information and belief, to date, FID has consistently found that every NYPD officer who used fatal force was justified in doing so.

288. Upon information and belief, to date, FID has consistently found that every NYPD officer who used fatal force was justified in doing so.

289. Upon information and belief, FID is consistently staffed with investigators who lack the knowledge, skills, abilities, and work-ethic to conduct a complex investigation, and/or those who have significant force histories, corruption histories, and/or credibility issues – thus leaving investigations vulnerable to both substandard police work and corruption.

290. On May 27, 2016, the NYPD revised its Force Policy reporting guide and implemented the TRI report. Figure 8 below is a true and accurate copy of the first page of the May 27, 2016, Force Policy Revision.

Figure 8:

PATROL GUIDE 221 TACTICAL OPERATIONS

USE OF FORCE – INVESTIGATIVE RESPONSIBILITY AND REPORTING GUIDE

LEVEL OF FORCE	EXAMPLES OF FORCE	OR	TYPE OF INJURY	SUPERVISOR	METHOD OF REPORTING
LEVEL 1	• Hand or foot strike • Forcible take-down • Wrestling a subject to ground • OC spray • CEW/Taser in cartridge mode • Mesh restraining blanket		• Physical injury • Alleged¹ excessive Level 1 force with no injury	Immediate Supervisor (Must be one rank above the subject officer) <i>CEW/Taser = Lieutenant or Above³</i>	Threat, Resistance, or Injury Incident Worksheet
LEVEL 2	• Intentional striking of a subject with an object (e.g. impact weapon) • Police canine bite • CEW/Taser in drive stun mode		• Substantial physical injury • Alleged or suspected² excessive force with physical or substantial physical injury • Attempted suicide by prisoner	C.O./X.O./Duty Captain (Must respond to scene) <i>Borough Investigations Unit May Assist</i>	Threat, Resistance, or Injury Incident Worksheet & Investigating Supervisor Assessment Report
LEVEL 3	• Deadly physical force ◦ Physical force that is readily capable of causing death or serious physical injury		• Serious physical injury • Alleged or suspected excessive force with serious physical injury • Attempted suicide by prisoner with serious physical injury	Internal Affairs Bureau (Must respond to scene)	Threat, Resistance, or Injury Incident Worksheet & Investigating Supervisor Assessment Report
FIREARM DISCHARGE	• Discharge of a firearm		• Person dies • Seriously injured and likely to die immediately prior to police custody, during apprehension, or while in police custody	Force Investigation Division (Must respond to scene)	Threat, Resistance, or Injury Incident Worksheet & Typed Letterhead (UF49)

>ALLEGATIONS¹ of excessive force are typically made by civilian witnesses or subjects while SUSPICION² of excessive force typically arises from a supervisor's initial assessment or subsequent investigation into an incident.

>Discharge of a CEW/Taser requires the Immediate/Investigating Supervisor to be in the rank of Lieutenant or above (discharges by ESU may be handled by a Sergeant).³

>Ordering a subject to lay on the ground or guiding them in a controlled manner, drawing your firearm, using Velcro restraint straps, or using a polycarbonate shield to restrain someone is not considered a reportable use of force in the context of this procedure.

>If one incident contains multiple MOS using varying levels of force or non-MOS receive varying levels of injury, the supervisor responsible for the highest force/injury level will conduct the investigation.

>A TRI-Investigating Supervisor Assessment Report is completed by the CO/XO/Duty Captain or IAB to document the results of their investigation of a Level 2 or 3 incident.

FORCE POLICY REVISION

REVISED MAY 27, 2016

291. Prior to the use of the TRI report, IAB was called to the scene of in-custody injuries that resulted in a visit to the hospital.

292. With the advent of the TRI report, if a supervisor claims or asserts that an injury occurred before the arrest, there is no investigation.

293. With the advent of the TRI report, if a supervisor claims or asserts that an injury was not serious, there is no IAB investigation unless the officers admit they used deadly physical force.

294. With the advent of the TRI report, if a supervisor claims or asserts that an injury was not serious, even where the injury required a visit to the hospital, but the arrestee was not admitted, there is no IAB investigation unless the officers admit they used deadly physical force (except for a firearm discharge which is only investigated by FID).

295. Defendants falsely reported that Plaintiff was not seriously injured to avoid IAB investigation.

296. This new scheme results in fewer investigations into force being conducted by IAB and therefore, decisions about whether force was excessive are being handled at the precinct or borough level.

297. The Mollen Commission explicitly warned about this type of approach which can lead to a lack of investigation at the precinct and borough level when incidents, like the one at hand, are not investigated or not sufficiently investigated or categorized.¹⁰

298. This allows officers who are serial offenders of force incidents and other corruption to go undetected in a similar manner to the way that the similar setup including borough investigations and “tickler files,” allowed officers like Bernard Cawley and Michael Dowd to engage in uncontrolled acts of corruption and abuse.

299. As the Mollen Commission demonstrated, the officers with the most complaints

¹⁰ See Mollen Comm’n Final Report, Section V “Fragmenting, Minimizing, and Concealing Police Corruption Cases” at 90-100.

including even complaints for discourtesy and suspected corruption and theft, were the most likely to be engaged in rampant abuse including excessive force, corruption, and criminal activity.

300. Upon information and belief, the City's failure to sufficiently investigate matters relating to the Individual Defendants directly led to the violation of Plaintiff's civil rights complained of herein.

ALLEGATIONS RELATED TO DEFENDANTS' CIVIL CONSPIRACY

301. Defendants engaged in a civil conspiracy, and/or common scheme which connects and/or links each Defendant with each of the causes of action alleged herein.

302. Defendants conspired and/or otherwise agreed among themselves and/or other agents, servants, and/or employees of the CITY, to cover up the unlawful acts committed against Plaintiff during and after his arrest.

303. Defendants carried out overt acts in furtherance of their conspiracy and/or agreement to cover up their misconduct, including the excessive force used against Plaintiff, including, but not limited to: Refusing to report the acts and omissions committed by Defendants to the NYPD's Internal Affairs Bureau (IAB); and abusing their authority to repeatedly detain and re-arrest Plaintiff without probable cause and in violation of State and Federal Law, causing Plaintiff extreme pain and suffering by worsening and injury that Plaintiff informed them about and refusing to allow Plaintiff access to necessary medication, violating Plaintiff's constitutional rights against search and seizure, questioning Plaintiff without his attorney, knowingly and intentionally arresting Plaintiff for several alleged crimes for which Defendants had no probable cause to arrest Plaintiff for, falsely report that Plaintiff was resisting arrest, making false statements on official paperwork, using unlawful methods to attempt to coerce and manipulate Plaintiff into admitting to crimes and/or implicate others in those crimes.

304. Defendants carried out these acts intentionally, and in furtherance of their conspiracy.

305. The Defendants were not present during the initial incident, ratified the conduct thereafter by joining in the conspiracy to cover up the misconduct including the use of excessive force against Plaintiff.

306. Upon information and belief, Defendants had carried out similar conspiracies on prior dates.

307. Each conspirator engaged in these acts to protect themselves and their colleagues, but more so, because of deep-seated patterns and practices to do so in order to protect the reputation of the NYPD and its officers.

308. Defendants' conspiracy resulted in damage and/or injury to Plaintiff.

309. Defendants' conspiracy links each Defendant to each of the state law causes of action described below.

DAMAGES

310. As a direct and proximate result of conduct of Defendants heretofore and hereafter set forth, Plaintiff suffered, and continues to suffer, injuries and damages that exceed all jurisdictional limits of the lower courts, including, but not limited to:

- a. violation of Plaintiff's rights under the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution
- b. violation of Plaintiff's rights under New York State and City law;
- c. severe physical injuries and pain and suffering;
- d. emotional distress, including fear, embarrassment, frustration, extreme inconvenience, and anxiety;

- e. loss of liberty and unlawful confinement;
- f. economic damage and loss;
- g. property damage and loss; and
- h. fear that Plaintiff will be rearrested based on the incorrect and false information in NYPD's databases.

311. Defendants are not entitled to raise the defense of contributory negligence for any claims brought pursuant to statute including 42 U.S.C. § 1983.

312. Pursuant to CPLR 1603, all causes of action alleged herein are exempt from the operation of CPLR 1601 by reason of one or more of the exemptions provided in CPLR 1602, including but not limited to, CPLR 1602(2), CPLR 1602(5), 1602(7) and 1602(11), and because Article 16 does not apply to civil rights claims, thus precluding defendants from limiting their liability by apportioning some portion of liability to any joint tortfeasor.

FIRST CAUSE OF ACTION

Excessive Force Pursuant to 42 U.S.C. § 1983

***Against Defendants WYNNE, GARCIA, LOPEZ, CARD
AMODIO, VANNUCCI, PALAIA, AND JOHN DOES 1-5***

313. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

314. At all times relevant herein, Defendants WYNNE, GARCIA, LOPEZ, CARD AMODIO, VANNUCCI, PALAIA, and JOHN DOES 1-5 were acting under color of state law.

315. At all times relevant herein, the Defendants WYNNE, GARCIA, LOPEZ, CARD AMODIO, VANNUCCI, PALAIA, and JOHN DOES 1-5's actions deprived Plaintiff of rights, privileges, and immunities secured by the laws of the United States and the United States Constitution.

316. At all times relevant herein, the Individual Defendants WYNNE, GARCIA, LOPEZ, CARD AMODIO, VANNUCCI, intentionally, and without probable cause to do so, seized and/or confined Plaintiff in an excessive manner, causing him physical injury.

317. At all times relevant herein, the force used by Individual Defendants WYNNE, GARCIA, LOPEZ, CARD AMODIO, VANNUCCI was beyond that which was warranted by the objective circumstances at the time each incident occurred.

318. At all times relevant herein, the force used by Individual Defendants WYNNE, GARCIA, LOPEZ, CARD AMODIO, VANNUCCI, including that which was used after Plaintiff's arrest, amounted to punishment without due process.

319. At all times relevant herein, Defendants WYNNE, GARCIA, LOPEZ, CARD AMODIO, failed to intervene in each other's obviously illegal actions.

320. At all times relevant herein, the conduct of Defendants WYNNE, GARCIA, LOPEZ, CARD AMODIO, VANNUCCI, PALAIA, and JOHN DOES 1-5 assisted in covering up the excessive force used against Plaintiff.

321. At all times relevant herein, Defendants WYNNE, GARCIA, LOPEZ, CARD, AMODIO, PALAIA, and JOHN DOES 1-5 failed to intervene in Defendant VANNUCCI's obviously illegal actions.

322. At all times relevant herein, the conduct of Defendants WYNNE, GARCIA, LOPEZ, CARD AMODIO, VANNUCCI, PALAIA, and JOHN DOES 1-5 deprived Plaintiff of his right under the Fourth and Fourteenth Amendments to the United States Constitution to be free from excessive force.

323. At all times relevant herein, the conduct of Defendants WYNNE, GARCIA, LOPEZ, CARD AMODIO, VANNUCCI, PALAIA, and JOHN DOES 1-5 deprived Plaintiff of his right under the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution.

324. Plaintiff was injured as a direct and proximate result Defendants' WYNNE, GARCIA, LOPEZ, CARD AMODIO, VANNUCCI, PALAIA, and JOHN DOES 1-5 violation of his rights, in an amount that exceeds the jurisdictional limits of all lower courts.

SECOND CAUSE OF ACTION

Assault and Battery

Against all Defendants CITY OF NEW YORK

WYNNE, GARCIA, LOPEZ, CARD, AMODIO, VANNUCCI

325. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

326. Defendant WYNNE, GARCIA, LOPEZ, CARD, AMODIO, VANNUCCI's intentional conduct placed Plaintiff in imminent apprehension of harmful and/or offensive touching.

327. Defendants CITY, WYNNE, GARCIA, LOPEZ, CARD, AMODIO, VANNUCCI engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him.

328. Defendants CITY, WYNNE, GARCIA, LOPEZ, CARD, AMODIO, VANNUCCI used excessive and otherwise unjustified force against the plaintiff.

329. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to WYNNE, GARCIA, LOPEZ, CARD, AMODIO, VANNUCCI and those officers who failed to intervene, pursuant to the doctrine of *respondeat superior*.

330. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

THIRD CAUSE OF ACTION
False Arrest, Wrongful Confinement,
and Unlawful Imprisonment Pursuant to 42 U.S.C. § 1983
Against the Individual Defendants

331. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

332. At all times relevant herein, the Individual Defendants were acting under color of state law.

333. At all times relevant herein, the Individual Defendants' actions deprived Plaintiff of rights, privileges, and immunities secured by the laws of the United States and the United States Constitution.

334. At all times relevant herein, the Individual Defendants' intentionally, and without probable cause to do so, seized and/or confined Plaintiff.

335. At all times relevant herein, Plaintiff was aware of the Individual Defendants' seizure and/or confinement of Plaintiff's person and property and did not consent to it.

336. At all times relevant herein, the Individual Defendants failed to intervene to stop the false arrest of Plaintiff and failed to release him from custody despite knowing his arrest was not based on probable cause.

337. At all relevant times, Plaintiff was injured, sick, sore, lame, disabled, and otherwise in pain throughout his confinement.

338. At all relevant times, Defendants continually re-arrested Plaintiff and held him where he was required to be handcuffed, including rear-cuffed, thus exacerbating his pain, injuries, and physical injury.

339. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth, Fourteenth, and Eighth Amendments to the United States Constitution.

340. At all times relevant herein, the Individual Defendants deprived Plaintiff of his rights under the Fourth, Fourteenth, and Eighth Amendments to the United States Constitution.

341. Plaintiff was damaged as a direct and proximate result of Defendants' violation of his rights, and in an amount that exceeds the jurisdictional limits of all lower courts.

FOURTH CAUSE OF ACTION
False Arrest, Wrongful Confinement, and Unlawful Imprisonment
Pursuant State Law
Against all Defendants

342. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

343. Defendants acting individually, and in concert with one another, intended to confine and/or seize Plaintiff.

344. Defendants acting individually, and in concert with one another, confined and/or seized Plaintiff.

345. Plaintiff was conscious of the confinement and/or seizure.

346. Plaintiff did not consent to Defendants' confinement and/or seizure.

347. Defendants' confinement of Plaintiff was not privileged.

348. At the time Plaintiff was seized and thereafter, Defendants lacked probable cause to confine and/or seize Plaintiff.

349. At the time Plaintiff was seized and thereafter, Defendants lacked the reasonable suspicion to confine and/or seize Plaintiff.

350. Defendants later claimed that they also arrested Plaintiff for crimes he allegedly committed at the scene of his arrest, including resisting arrest and obstruction of governmental administration.

351. At all relevant times mentioned herein, Defendants acted extrajudicially, and without a warrant.

352. Defendants' seizure and/or confinement of Plaintiff subjected Plaintiff to a deprivation of liberty without probable cause.

353. The agents, servants, and employees of the CITY, including the Individual Defendants, knew or should have known that Plaintiff's confinement and/or seizure was unlawful and lacked probable cause, but failed to intervene to release him from the unlawful confinement despite their duties to do so.

354. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, and contractors, including, but not limited to the Individual Defendants and those officers who failed to intervene to release Plaintiff, pursuant to the doctrine of *respondeat superior*.

355. Defendant CITY is responsible for the information contained in its databases including incorrect, misleading, and false information about Plaintiff.

356. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

FIFTH CAUSE OF ACTION
Unreasonable Search and Seizure and Excessive Force
Pursuant to Local Law 48 of 2021
Against All Defendants

357. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

358. Effective on May 24, 2021, Local Law 48 of 2021, amended the New York City Administrative Code (N.Y.C. Admin. Code §§ 8-801, *et seq.*) to create rights of security against unreasonable search and seizure.

359. Effective on May 24, 2021, Local Law 48 of 2021, amended the N.Y.C. Admin. Code (§§ 8-801, *et seq.*) to create rights of security against excessive force.

360. At all relevant times mentioned herein, Plaintiff was a person aggrieved as defined in N.Y.C. Admin. Code. § 8-801.

361. At all relevant times mentioned herein, Plaintiff was subjected to and/or subjected to the deprivation of his rights granted and/or protected by N.Y.C. Admin. Code. § 8-802.

362. At all relevant times mentioned herein, the Individual Defendants were covered individuals as defined in as defined in N.Y.C. Admin. Code. § 8-801.

363. At all relevant times mentioned herein, Defendant CITY was the employer of the Individual Defendants and law enforcement officers who violated Plaintiff's rights as alleged herein.

364. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against unreasonable search and seizure.

365. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against excessive force.

366. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against excessive force regardless of whether such force was used in connection with a search or seizure.

367. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY, violated Plaintiff's right of security against unreasonable search and seizure guaranteed by N.Y.C. Admin. Code. § 8-802.

368. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY, violated Plaintiff's right of security against excessive force guaranteed by N.Y.C. Admin. Code. § 8-802.

369. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY failed to intervene in the violation of Plaintiff's rights secured by N.Y.C. Admin. Code. § 8-802.

370. At all relevant times mentioned herein, Defendant CITY is liable for the acts and omissions of its police officers, who are covered individuals including the Individual Defendants pursuant to N.Y.C. Admin. Code. § 8-803(b).

371. Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts, as a direct and proximate result of the violations of Plaintiff's rights guaranteed by N.Y.C. Admin. Code. § 8-802.

372. Plaintiff has suffered, and continues to suffer, severe physical injuries, emotional distress, economic losses, and was unlawfully confined in violation of his rights guaranteed by N.Y.C. Admin. Code. § 8-802.

373. N.Y.C. Admin. Code. § 8-802 prohibits Defendants from raising as a defense to this cause of action, the defenses of qualified immunity or "any other substantially similar immunity."

374. The CITY has, by legislative pronouncement, and pursuant to the Mayor's refusal to veto N.Y.C. Admin. Code. § 8-801, et seq., knowingly waived its sovereign immunity with respect to the portions of the law which permit punitive damages and prohibit the use of immunity defenses as stated therein.

375. Pursuant to N.Y.C. Admin. Code. § 8-805, Plaintiff is entitled to compensatory damages, punitive damages, attorneys' fees and costs, injunctive relief, and other equitable relief as the Court deems appropriate.

SIXTH CAUSE OF ACTION
Negligence, Negligent Infliction of Emotional Distress, and
Negligent Hiring, Retention, Training, and Supervision
Against All Defendants

376. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

377. Defendant CITY owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

378. Defendant CITY breached those duties of care.

379. Defendant CITY placed Defendants in a position where they could inflict foreseeable harm.

380. Defendant City knew or reasonably should have known of the propensities of its employees, including the Individual Defendants, to commit civil rights violations and other unethical, corrupt, and violent acts.

381. Upon information and belief, said personnel files, records and disciplinary histories will demonstrate that the CITY was fully aware of the Individual Defendants' past constitutional violations, unsuitability for police work, misconduct, substance abuse, violence, criminality, and/or corrupt behavior, and as such, of the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for public employment in general.

382. Upon information and belief, the CITY failed to engage in any preventive or

corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the CITY's tacit approval of such misconduct or the CITY's deliberate indifference towards the civil rights of those who may interact with its employees, including the Individual Defendants and their fellow officers.

383. Upon information and belief, Defendant CITY failed, or outright refused, to correct the prior unconstitutional, violent, corrupt, or dishonest behavior of the officers at issue, including the Individual Defendants, and thus, failed to prevent the exercise of such behavior against Plaintiff.

384. Defendant CITY failed to take reasonable measures in hiring, training, retaining and supervising its employees, including the Individual Defendants that would have prevented the aforesaid injuries to Plaintiff.

385. Defendants negligently breached their duties of care to Plaintiff and in doing so, inflicted emotional harm upon Plaintiff.

386. Plaintiff was physically injured and suffered understandable mental trauma as a result of being brutalized and violated by the Defendants.

387. The CITY's Patternizr *et al.*, databases and/or programs were created by, designed by, and are owned, operated, managed, and controlled the CITY.

388. The Defendants accessed the CITY's Patternizr *et al.*, databases and/or programs to input false, misleading, and/or inaccurate information and/or for inappropriate purposes.

389. The Defendants relied on the CITY's Patternizr *et al.*, databases and/or programs for unlawful purposes including unlawfully assuming that Plaintiff had committed crimes that he did not or that he was a violent criminal.

390. Defendant CITY negligently entrusted Patternizr *et al.*, databases and/or programs

to its employees.

391. Defendant CITY knew or should have known Defendants would not operate the Patternizr *et al.*, databases and/or programs with reasonable care.

392. Plaintiff has been seriously injured as a result of Defendants' failure to operate, manage, maintain, supervise, design, organize, and/or review Patternizr *et al.*, databases and/or programs with reasonable care.

393. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene or who otherwise caused Plaintiff harm pursuant to the doctrine of *respondeat superior*.

394. At all times relevant herein, the Individual Defendants failed to intervene in the obviously negligent, careless, reckless, and illegal actions of their fellow officers including those of the other Individual Defendants.

395. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

SEVENTH CAUSE OF ACTION
Abuse of Process Pursuant to 42 U.S.C. § 1983
Against the Individual Defendants

396. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully here.

397. At all times relevant herein, the Individual Defendants were acting under color of state law.

398. At all times relevant herein, the Individual Defendants' actions deprived Plaintiff of rights, privileges, and immunities secured by the laws of the United States and the United States

Constitution.

399. At all times relevant herein, the Individual Defendants issued, failed to remove, and/or acted on the issuance of false I-Cards and/or I-Cards lacking probable cause, arrested or ensured the arrest, detention, stop, and mistreatment of Plaintiff, and the repeated detention, stop, arrest, search, and harassment of Plaintiff as well as the institution of criminal proceedings against Plaintiff.

400. The Individual Defendants initiated and/or activated the process for ulterior motives and without economic or social excuse or justification.

401. The Individual Defendants initiated and/or activated the process to do harm and/or obtain a collateral advantage and/or detriment to Plaintiff outside of the legitimate ends of the process.

402. At all times relevant herein, the Individual Defendants failed to intervene in the obviously illegal actions of their fellow officers including those of the other Individual Defendants.

403. The Individual Defendants' conduct deprived Plaintiff of his rights pursuant to the First, Fourth, Eighth, Fourteenth Amendments to the United States Constitution.

404. Plaintiff was injured as a direct and proximate result of The Individual Defendants' violation of his rights, in an amount that exceeds the jurisdictional limits of all lower courts.

EIGHTH CAUSE OF ACTION
Abuse of Process Pursuant State Law
Against all Defendants

405. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully here.

406. At all times relevant herein, Defendants initiated a legal process and/or proceeding against Plaintiff.

407. At all times relevant herein, Defendants issued, failed to remove, and/or acted on

the issuance of false I-Cards and/or I-Cards lacking probable cause, arrested or ensured the arrest, detention, stop, and mistreatment of Plaintiff, and the repeated detention, stop, arrest, search, and harassment of Plaintiff as well as the institution of criminal proceedings against Plaintiff.

408. The Individual Defendants initiated and/or activated the process for ulterior motives and without economic or social excuse or justification.

409. The Individual Defendants initiated and/or activated the process to do harm and/or obtain a collateral advantage and/or detriment to Plaintiff outside of the legitimate ends of the process.

410. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene to release Plaintiff, pursuant to the doctrine of *respondeat superior*.

411. Plaintiff was injured as a direct and proximate result of Defendants' violation of his rights, in an amount that exceeds the jurisdictional limits of all lower courts.

412. The plaintiff suffered actual and special damages as a result.

NINTH CAUSE OF ACTION
Pursuant to Local Law 48 of 2021
For Unreasonable Search and Seizure and Excessive Force
Against All Defendants

413. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

414. Effective in 2006, the New York City Administrative Code (N.Y.C. Admin. Code) §§ 14-151, *et seq.* prohibits all law enforcement officers, including all members of the NYPD and the Individual Defendants from engaging in biased-based policing.

415. N.Y.C. Admin Code 14-151, *et seq.* prohibit the NYPD and the CITY from engaging in or allowing biased-based policing.

416. N.Y.C. Admin Code 14-151, *et seq.* created a private right of action on behalf of those like the Plaintiff, against whom law enforcement action is initiated based on their actual or perceived race, national origin, color, creed, age, immigration or citizenship status, gender, sexual orientation, disability, or housing status as opposed to their behavior.

417. The plaintiff was at all relevant times, a member of one or more the protected groups noted above.

418. Defendants engaged in intentional bias-based profiling of Plaintiff based on his actual and/or perceived membership of a protected group including that he is Hispanic and therefore they assumed he is a member of a Hispanic gang.

419. The NYPD's policies and practices had and continue to have a disparate impact on members of Plaintiff's protected groups, including Plaintiff.

420. There is a statistically significant difference between the manner in which Plaintiff's protected groups are treated than other groups who are members of the general public.

421. An alternative policy or practice with less disparate impact is available.

422. Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts, as a direct and proximate result of the violations of Plaintiff's rights guaranteed by N.Y.C. Admin. Code. § 14-151, *et seq.*

423. Defendant CITY, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

424. Plaintiff is entitled to declaratory relief, including a finding that Defendants engaged in biased-based policing.

425. Plaintiff is entitled to injunctive relief, costs, including expert costs and fees, and reasonable attorney's fees.

426. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

TENTH CAUSE OF ACTION
Pursuant to 42 U.S.C. § 1984, *Monell* claim
against Defendant THE CITY OF NEW YORK

427. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

428. Defendant CITY maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, and tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative conduct.

429. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

430. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

431. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

432. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

433. Defendant City's conduct caused Plaintiff to be deprived of his civil rights, as

guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereto.

434. The CITY OF NEW YORK is liable to Plaintiff given its recalcitrant patterns and practices as well as persistent failure to train its agents, servants, and employees with respect to: 1) *Debour* and/or analyzing the conduct required to stop, question, frisk, pursue, and detain and/or arrest citizens in street encounters; 2) the use of BWC; 3) providing and/or obtaining emergency medical treatment for arrestees; and 4) the duty to intervene to prevent other law enforcement officers from violating the civil rights of arrestees and/or citizens.

435. Filed on January 31, 2008, *Floyd v. City of New York*, remains open for Court appointed monitorship of THE CITY OF NEW YORK's compliance with the settlement agreement obtained subsequent to the Court's finding that THE CITY OF NEW YORK engaged in unconstitutional and discriminatory patterns and practices in its use of Terry Stops also known as "stop and frisk" or "stop, question, and frisk" [hereinafter as "SQF"].

436. The pleadings, transcripts, and decision in *Floyd* as well as the monitor reports are incorporated hereto by reference.

437. The actions of the Individual Defendants were part of THE CITY OF NEW YORK's custom and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of THE CITY OF NEW YORK under the NYPD's "Stop, Question and Frisk" policy or program [hereinafter as "SQF" or "Stop and Frisk"].

438. The remedial order in *Floyd v. City of New York*, mandated the involvement of a court-appointed monitor to establish policies and procedures for NYPD's body-worn camera program.

439. There is no question that the implementation of BWCs across the NYPD has been useful in identifying officers who are responsible for unlawful acts and constitutional violations.

440. However, NYPD is also aware that officers are intentionally removing and/or obscuring their BWC footage before, during and after problematic encounters.

441. At least three of five body worn cameras were shut off and/or removed during the use of excessive force against Plaintiff.

442. As reported by the Civilian Complaint Review Board (CCRB) in February of 2020, and observed by the undersigned in may force cases, including the instant case, Officers have also been seen and heard intentionally obscuring their BWCs or signaling to each other to remove or turn off their cameras to avoid documenting misdeeds, crimes, and constitutional violations.

443. In February of 2020, the CCRB recommended that NYPD amend its BWC policies to make intentionally hindering a BWC recording a prohibited act.

444. To date, NYPD has refused to amend its policies to prohibit intentionally hindering a BWC recording.

445. The refusal to promulgate a policy which makes clear that intentionally obscuring one's camera is misconduct, has clearly empowered unscrupulous officers like the Individual Defendants to obscure their BWC while committing unlawful acts and while conspiring to coverup said unlawful acts.

446. There is no justifiable reason for THE CITY OF NEW YORK to continue a policy which allows this blatant unconstitutional misconduct to continue unabated, especially as the act of obscuring a BWC to prevent one's actions from being recorded, demonstrates a fundamental lack of integrity shared only by the worst officers.

447. Similarly, NYPD has failed to properly train its officers on the law of arrest and the

definition of probable cause.

448. NYPD's officers are supposed to receive the reports of any declined prosecutions for which they are the arresting officer, but it is unclear if NYPD is tracking these incidents to ensure that officers are retrained or removed from service if they continually arrest people without probable cause to do so.

449. The Patrol Guide 212-11 covers investigative encounters, but at 16 pages long, most officers have not read or understood the law which governs street encounters, or the policy enacted by NYPD which purports to obtain their compliance with the law.

450. Training on the law of arrest, and other critical legal and procedural concepts that officers frequently misunderstand and/or ignore has never ventured beyond pre-recorded rote, videos that recite the law without giving any relevant context.

451. These videos are usually shown at roll call, not formalized training, and quickly ignored after they are viewed.

452. For all of the millions of dollars that THE CITY OF NEW YORK spends on tactical and weapons trainings, and policies related thereto, it spends very little time and money ensuring that its employees are properly trained in realistic scenarios geared toward conducting the basic street-level encounters that make up the majority of citizen interaction and majority of constitutional violations by the NYPD, as here.

453. While the individual Defendants bear responsibility for their own acts and omissions, THE CITY OF NEW YORK is also responsible for its egregious and longstanding failures that led to the violation of Plaintiff's constitutional rights and irreparably harmed Plaintiff.

454. THE CITY OF NEW YORK has failed to train its officers on their duty to intervene in unconstitutional conduct by other officers, including the use of excessive force and the denial of

medical treatment to those like Plaintiff, who are injured by excessive force.

455. THE CITY OF NEW YORK has failed to train its supervisors and investigators to ensure that officers who commit misconduct are supervised, retrained, demoted and/or terminated.

456. Instead, THE CITY, if it punishes officers at all, merely demands that they forfeit some of their numerous vacation days even where they have engaged in egregious uses of excessive force and misconduct.

457. The CITY rarely, if ever, punishes or even investigates the failure of officers to intervene in excessive force or other misconduct that they witness, despite having a stated policy that holds that to fail to intervene and/or fail to report misconduct, is itself misconduct.

458. The CITY has failed to promulgate a policy regarding removing I-Cards that are false, misleading, inaccurate, and/or for which probable cause does not exist or no longer exists.

459. THE CITY OF NEW YORK knows to a moral certainty that the ongoing failure to train its officers will lead to officers making unconstitutional choices that sometimes have horrific and deadly consequences.

460. Plaintiff was damaged as a direct and proximate cause by THE CITY OF NEW YORK's ongoing failure to train its officers, and failure to promulgate policies that encourage the lawful policing of New York City and discourage unlawful, dishonest, violent, and criminal behavior among NYPD officers as articulated throughout the complaint.

461. Plaintiff was damaged as a direct and proximate cause of the CITY's unconstitutional acts and omissions.

462. Plaintiff's damages exceed the jurisdictional limits of all lower courts.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that the following be entered jointly and severally against Defendants and for a jury trial on all causes of action:

- a. Injunctive relief, including, but not limited to: 1) full inspection of the NYPD's records regarding Plaintiff by Plaintiff and his attorneys and removal of all false, misleading, inaccurate, bigoted, and unconstitutional and/or unlawful statements, allegations and information therein; and 2) independent review of NYPD's use of predictive technology and/or algorithms and analysis to identify suspects; and retraining of NYPD officers regarding their duty to remove false and/or inaccurate information from NYPD records which are now or may be in the future used in data aggregation and/or analysis like that which is identified as Patternizr, *et al.*, herein.
- b. A declaratory judgment that the actions, conduct and practices of Defendants complained of herein violated Plaintiff's rights, privileges, and immunities secured by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution and applicable federal law; and
- c. A declaratory judgment that the actions, conduct and practices of Defendants complained of herein violated Plaintiff's rights, privileges, and immunities secured by the laws of the State and City of New York; and
- d. Compensatory damages in an amount to be determined at trial for the serious physical injuries, mental and emotional anguish, unlawful search

and seizure, human rights violations, and economic damages sustained by Plaintiff as a result of the events alleged herein; and

- e. Punitive damages and any applicable penalties in an amount to be determined at trial; and
- f. Awarding Plaintiff reasonable attorneys' fees pursuant to fees pursuant to 42 U.S.C. § 1988 and New York Statute, together with the costs of this action; and
- g. Prejudgment interest on all amounts due; and
- h. Such other further relief as the Court may deem appropriate.

DATED: New York, New York
May 3, 2024

Respectfully,

LIAKAS LAW, P.C.
Attorneys for the Plaintiff
JUSTIN DE LA CRUZ
40 Wall Street, 50th Floor
New York, New York 10005
Tel: (212) 937-6655



CASSANDRA ROHME, ESQ.

VERIFICATION

CASSANDRA ROHME, an attorney duly admitted to practice in the Courts of the State of New York, says that she is an associate in the office of Liakas Law, P.C., attorneys for Plaintiff JUSTIN DE LA CRUZ, and affirms the following statements to be the truth under penalties of perjury, pursuant to CPLR § 2106:

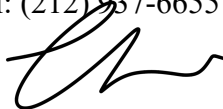
That she has read the foregoing Summons and Complaint and knows the contents thereof; that the same is true to her knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes them to be true based on conversations with the Plaintiff and investigations conducted by the office of the undersigned.

Deponent further states that the reason why this verification is not made by Plaintiff JUSTIN DE LA CRUZ is that Plaintiff is not presently in the County where the undersigned maintains her office.

DATED: New York, New York
May 3, 2024

Respectfully,

LIAKAS LAW, P.C.
Attorneys for the Plaintiff
JUSTIN DE LA CRUZ
40 Wall Street, 50th Floor
New York, New York 10005
Tel: (212) 937-6655



CASSANDRA ROHME, ESQ.